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General Comment

Should AI Be Capable of Forgetting? Strengthening Copyright in the Age of Generative AI

If generative AI (GenAI) truly “thinks” like a human, then it should also be capable of “forgetting” like one. While AI does not possess memory in the human sense, AI models that have been trained on copyrighted works without consent should be required to “unlearn” them, ensuring that creators retain full control over their intellectual property.

To regulate generative AI effectively within a capitalist framework (at least without stifling the industry around generative AI entirely) copyright laws must be strengthened. AI companies offering for-profit generative models should be legally required to implement mechanisms that remove copyrighted content upon request, giving artists, authors, and other creators meaningful recourse.

Copyright & Ownership in AI-Generated Works

AI-generated works should be eligible for copyright protection only when they involve significant human creative input. Simple text prompts without meaningful post-processing should not qualify. While quantifying creativity is challenging, a threshold of at about 50% human modification—through editing, refinement, or artistic transformation—should be required for copyright eligibility.

All AI-generated outputs that fail to meet this standard should be classified as non-copyrightable and made publicly available, except in cases of copyright infringement. Outputs that violate copyright laws should not be sold or monetized in any form, while those that do not infringe may be commercialized but must be labeled as AI-generated.

Additionally, AI-generated works that have been significantly interpolated, whether redrawn, repainted, or otherwise substantially transformed, should be eligible for copyright protection, provided they are truly unique and not replicable through the same prompt. This ensures that human creative effort remains central to intellectual property rights in the AI era.

Protecting Human Creatives from Direct Competition with AI

Artists, authors, and creatives should not be forced into direct competition with generative AI models, as this would devalue human creativity and undermine professional opportunities. Safeguarding creative industries requires fair market practices and clear regulations on the commercial use of AI-generated content, including:

- **Mandatory Disclosure of AI Use:** Companies utilizing AI-generated works should be required to clearly disclose when and how AI is used. This transparency allows consumers and businesses to make informed decisions and prevents AI-generated content from being misrepresented as human-made.
- **Restricting AI in Fields Where Human Creativity Is Integral:** AI-generated content should not be used to replace human labor in industries where artistic vision and craftsmanship are essential. For example, AI-generated illustrations should not be directly substituted for commissioned artwork unless explicitly agreed upon by all involved parties.
- **Incentives for Human-Made Creative Content:** Governments should offer grants, tax breaks, or subsidies for businesses and platforms that prioritize human-made creative works over AI-generated alternatives. This would help sustain and strengthen creative industries,

encouraging investment in human talent rather than relying solely on AI-generated content.

Fair Licensing Agreements for AI Training

Building on the concept of AI “unlearning” or removing copyrighted content, licensing agreements between copyright or intellectual property holders and AI companies should be fair, reasonable, and non-exploitative. These agreements should follow key principles:

- Reasonable Licensing Terms & Compensation: AI companies should be required to secure proper licensing agreements before using copyrighted works for training. These agreements should ensure fair financial compensation and reasonable timeframes.
- No Forced Transfers of Full Rights: AI companies should only obtain full rights to an artist’s, author’s, or creator’s work with their explicit and voluntary agreement. No creator should be pressured into permanently surrendering their rights to AI developers under exploitative terms.
- The Right to Revoke or Renegotiate Terms: Copyright holders should retain the ability to renegotiate or revoke agreements as AI technology evolves. This prevents creators from being locked into outdated or unfair agreements.

So in the end, if AI “unlearning” proves to be a challenge, the ethical and legal principles behind it are very valid.

Many of the proposed measures, like fair licensing, and disclosure requirements, are not dependent on whether AI can truly forget and should be implemented regardless, as they ensure creative professionals can continue to thrive alongside genAI models.